

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, JULY 21, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**TWO JINN, INC. dba ALADDIN BAIL BONDS v. BARROW, et al.
Case No. cl25-04157**

Motion for Judgment on the Pleadings Against Defendant MARLENA COHEN

TENTATIVE RULING

The answer by Defendant MARLENA COHEN to the complaint failed to contest any material allegations other than the amount remaining unpaid on the contract. However, this defendant later has been deemed to have admitted that amount, in admissions requests served on her to which she failed to serve responses. See January 16, 2026 minute order on Plaintiff's motion for order deeming requests for admission admitted.

The court thus grants Plaintiff's motion for judgment on the pleadings against Defendant MARLENA COHEN, for the claimed remaining balance of \$5,846.70.

Costs and attorneys fees must be claimed after judgment, in the manner specified in CRC 3.1700 and 3.1702.

**MARTINEZ v. AUTOMATIC BAR CONTROLS, INC.
Case No. cu24-06154**

Motion by Plaintiff for Preliminary Approval of Class Action/PAGA Settlement

TENTATIVE RULING

Parties and any interested persons are to appear for hearing as scheduled. Absent any objections, the court anticipates granting the preliminary approval motion, and ordering notice to the class members and aggrieved employees as proposed, and setting a final approval hearing for March 2, 2027, at 9:00 a.m. in Dept. 3, reserving its concerns over the high claimed amounts of attorneys fees and costs and the service awards, until that hearing.

PEREZ v. CHEN, et al. **Case No. CU25-00539**

- 1) Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability
- 2) Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability
- 3) Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability

TENTATIVE RULING

Counsel to appear prepared to discuss the injuries, treatment and related costs for the adult claimants and the basis for the proposed allocation

CITY OF BENICIA v. WIMMER **Case No. cu26-05820**

Petition/Motion for Appointment of Receiver

TENTATIVE RULING

If the title owner of property fails to effect cleanup/repairs within a reasonable period of time after service of the notice specified in Health & Safety Code §17980.6, Health & Safety Code §17980.7(c) authorizes the public entity to petition the court for appointment of a receiver, with the petition papers served on that owner in the manner required for service of summons.

If the owner fails to comply within a reasonable time with the terms of the order or notice issued pursuant to Section 17980.6, the following provisions shall apply:

. . .

(c) The enforcement agency, tenant, or tenant association or organization may seek and the court may order, the appointment of a receiver for the substandard building pursuant to this subdivision. In its petition to the court, the enforcement agency, tenant, or tenant association or organization shall include proof that notice of the petition was posted in a prominent place on the substandard building and mailed first-class mail to all persons with a recorded interest in the real property upon which the substandard building exists not less than three days prior to filing the petition. ***The petition shall be served on the owner pursuant to Article 3 (commencing with Section 415.10) of Chapter 4 of Title 5 of Part 2 of the Code of Civil Procedure*** (emphasis added)

While the post and mail pre-filing notice requirement has been established by CITY, the court cannot find any proof of service of the petition/motion papers on Defendant in a manner authorized for service of summons.

The only post-filing proof of service filed with the court by CITY claimed service of only the petition itself, not the notice of motion (hearing) or any of the supporting papers. Furthermore, the only manner of service claimed of the petition itself was posting.

Post-filing post and mail service is authorized only for unlawful detainer actions. C.C.P. §415.45.

Generally, except as to out-of-state residents, mail service is insufficient, and personal or substituted service is preferred. C.C.P. §§415.10—415.30; 415.40.

If despite reasonable diligence service cannot be effected in a manner authorized by those statutes, a plaintiff making such a showing can seek court authorization to serve by publication. C.C.P. §415.50.

The court therefore continues this matter to September 11, 2026, at 9:00 a.m. in Dept. 3, to give CITY time to exercise reasonable diligence to try to locate Defendant for service of all petition/motion papers and an amended notice for this continued hearing date, in one of the statutorily-authorized manners.

It also concerns the court that a receiver based in Southern California can be expected to claim significantly more time incurred for the proposed nuisance abatement activities than one based in Northern California. The court thus would appreciate an explanation as to why CITY has proposed a Southern California-based receiver.

CASTILLON v. DOUDNA
Case No. FCS057789

Motion for Attorneys Fees

TENTATIVE RULING

The unopposed motion is granted, with the court exercising its discretion under C.C.P. §527.6(s) to award attorneys fees and costs to the prevailing party Petitioner IRMA CASTILLON, and against Respondent ANNETTE DOUDNA, in the total amount of \$1,350.00, as only part of the work undertaken by counsel in the relevant time period can be attributed to him successfully seeking renewal of the previously-issued civil harassment restraining order.

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>

Meeting ID: 160 221 0102

Passcode: 650928

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